



European Patent Office
80298 MUNICH
GERMANY
Tel. +49 (0)89 2399 - 0
Fax +49 (0)89 2399 - 4465



Heinze, Ekkehard
Meissner, Bolte & Partner GbR
Postfach 86 06 24
81633 München
ALLEMAGNE

Formalities Officer

Name: Mylona, Anastasia
Tel.: 5457
or call:
+31 (0)70 340 45 00

Date
04-04-2011

Reference M/EVL-028-PC/EP	Application No./Patent No. 07827609.4 - 2107 / 2112929
Applicant/Proprietor Sunev Pharma Solution Limited Corporate	

Summons to attend oral proceedings pursuant to Rule 115(1) EPC

You are hereby summoned to attend oral proceedings arranged in connection with the above-mentioned European patent application.

The matters to be discussed are set out in the communication accompanying this summons (EPO Form 2906).

The oral proceedings, which will not be public, will take place before the Examining Division.

on 26.09.11 at 09.00 hrs at the EPO,
PschorrHöfe, Bayerstr. 34, D-80335 München

No changes to the date of the oral proceedings can be made, except on serious grounds (see OJ EPO 1/2009, 68). If you do not appear as summoned, the oral proceedings may continue without you (R. 115(2) EPC, see also OJ EPO 10/2008, 471).

Your attention is drawn to Rule 4 EPC, regarding the language of the oral proceedings, and to the Special edition No. 3 OJ EPO 2007, L.1., concerning the filing of authorisations for company employees and lawyers acting as representatives before the EPO.

The final date for making written submissions and/or amendments (R. 116 EPC) is 26.08.11.

The actual room number as well as the waiting room numbers will be given to you by the porter in the foyer at the above EPO address.

Parking is available free of charge in the underground car park. However, this applies only in the case of accessing the car park via the entrance "Zollstrasse".

1st Examiner:
Fayos C

2nd Examiner:
Weisser D

Chairman:
Friederich M

For the Examining Division

Annexes:
Confirmation of receipt (Form 2936)
Communication (EPO Form 2906)



Registered letter with advice of delivery
EPO Form 2008 04.09 [ORAL03=9999] (30/03/11)

to EPO postal service: 30.03.11
AM52284

The examination is being carried out on the **following application documents**

Description, Pages

1-8 as originally filed

Claims, Numbers

1-10 received on 24-02-2010 with letter of 24-02-2010

Having considered the arguments brought by the applicant with his letters of 24-02-2010 and 19-10-2010, as well as the newly filed claims, some of the objections raised in the previous communication are maintained and oral proceedings are considered expedient.

Since the applicant has requested oral proceedings, a summons is dispatched with this communication.

The topics of the oral proceedings to be held will be the following:

- Amendments - Art. 123(2) EPC
- Clarity - Art. 84 EPC
- Novelty - Art. 54 EPC
- Inventive step - Art. 56 EPC

as outlined below.

The applicant's attention is drawn to the fact that no submissions should be made later than one month prior to the date set for the oral proceedings.

The examining division will exert its discretion in deciding whether to allow or not further amendments according to Rule 137(3) EPC.

AMENDMENTS - Art. 123(2) EPC

- 1 New claim 1 contravenes Art. 123(2) EPC:
 - 1.1 According to the applicant, claim 1 is based on claim 1 as filed, together with page 5 line 2, p 6 paragraphs 1 and 2, p 6 table 1 and originally filed claims 2-3.
 - 1.2 The formulation being a "topical wound healing formulation" is correctly based on p 5 line 2.

1.3 The combination of features:

"a) 4 to 7 % of an aqueous extract of the barks of *Azadirachta indica*,

b) an extract of herbs selected from the group comprising 0.5 to 4 % of the roots of *Berberis aristata*, of the stems of *Glycyrrhiza glabra*, of the stems, leaves and flowers of *Jasminum officinale*, of the rizomas of *Picrorhiza kurrooa*, of the seeds or leaves of *Pongamia pinnata*, of the stems of *Rubia cordifolia*, of the rhizomes of *Saussurea lappa*, of the fruits of *Terminalia chebula*, of the fruits of *Capsicum* and of the flowers of *Stellata wild*, 6 to 9% of the roots of *Curcuma longa* and of the fruits or leaves of *Trichosanthes dioica*, and oils in equal ratios mixed with adjuncts, such as thickening agents, preservatives, coloring agents, decolorizing agents, fragrances, opacifiers and vitamins, wherein the extract of herbs are oil or alcohol extracts"

appears nowhere, disclosed as such, in the passages indicated by the applicant in the originally filed application. In particular, present claim 1 merely mentions "oils in equal ratios", without specifying that it is "a mixture of 4 oils viz. castor, mustard, coconut and black sesame oil in equal ratios", contrary to Art. 123(2) EPC. In addition, the passage on p 6 also relates specifically to "twelve herbs", whereas present claim 1 mentions "an extract of herbs selected from the group...", thus implying that not all twelve mentioned herbs need to be present, contrary to the statement on p 6, and hence contrary to Art. 123(2) EPC.

1.4 For the purpose of Art. 123(2) EPC and Art. 84 EPC (all essential technical features of the invention should be present in the claims), claim 1 could be drafted as:

A topical wound healing formulation comprising

a) 4 to 7 % of an aqueous extract of the barks of *Azadirachta indica*,

b) an oil-herbs mix consisting of

a mixture of castor, mustard, coconut and black sesame oils in equal ratios,

along with

extracts of the twelve following herbs

0.5 to 4 % of the roots of *Berberis aristata*, stems of *Glycyrrhiza glabra*, stems, leaves and flowers of *Jasminum officinale*, rizomas of *Picrorhiza kurrooa*, seeds or leaves of *Pongamia pinnata*, stems of *Rubia cordifolia*, rhizomes of *Saussurea lappa*, fruits of *Terminalia chebula*, of the fruits of *Capsicum*, flowers of *Stellata wild*, 6 to 9% of the roots of *Curcuma longa* and fruits or leaves of *Trichosanthes dioica*,

c) mixed with adjuncts, such as thickening agents, preservatives, coloring agents, decolorizing agents, fragrances and opacifiers.

1.5 The above formulation is merely a suggestion. It is based on the passages indicated by the applicant in the letter dated 24.02.2010, in line with Art. 123 (2) EPC, and is considered to contain all essential features of the invention (Art. 84 EPC).

1.6 Claim 1, and claims 2-10, as far as they depend on claim 1 fail to meet the requirements of Art. 123(2) EPC

2 According to the applicant, the subject matter of claim 2 is based on p 8, last paragraph. This passage merely mentions that *Symplocos racemosa* and *Ichnocarpus frutescens* may also be incorporated in the formulation, but does not mention a range of 0.5 to 4% of the barks of *Symplocos racemosa* and/or of the roots of *Ichnocarpus frutescens*. Claim 2 contravenes therefore Art. 123 (2) EPC, and the same applies to claims 3-10, as far as they depend on claim 2.

3 The applicant has indicated the passages on p 5 lines 19-21, p8 line 28, page 5 line 13 and p 5 lines 4-5, as a basis for new claim 3.

The passage on p 5 lines 19-21 mentions antibacterial, anti-fungal, anti-inflammatory, analgesic, and immuno- modulatory properties of the formulation.

The passage on page 8 line 28 merely mentions that "The effect on skin may also be enhanced by adding various vitamins e.g. A, C and B and nutrients which also serve as antioxidants to help prevent the emollient degradation of the formulation", and by no means provide a basis for the formulation of claim 1 having antioxidant properties. Claim 3 contravenes Art. 123(2) EPC.

The passages on page 5 lines 4-5 and 13 do not mention that the formulation "increases the blood flow, thus eliminating undesirable side effects and exhibiting remarkable efficacy in treating incurable wounds", but merely states that the formulation does not have undesirable side effects on the one hand, and that it improves the blood flow, on the other hand. Claim 3 contravenes Art. 123 (2) EPC, and the same applies to the corresponding dependent claims.

4 According to the applicant, claim 4 is based on originally filed claim 2, as well as from page 6 paragraph 2 of the description. As indicated above, the subject of claim 4 represents an essential technical feature of the invention claimed (Art. 84 EPC) and should be present in the independent claim.

- 5 Claim 5 is said to be based on page 8 line 20, page 7 lines 27-28, page 8 lines 14-15 as well as from claim 2 as originally filed.
- 6 Claim 6 can, according to the applicant, be taken from claim 3 as filed
- 7 Claim 7 correspond to claim 4 as filed.
- 8 Claims 8-10 have been, according to the applicant, reformulated to use claims, and are based on page 5, penultimate paragraph, and claim 5 as filed.
- None of the cited passages mentions "improving the immunomodulatory properties". Claim 8 contravenes Art. 123(2) EPC.
- 9 **In view of the above objections, it is not at present possible to provide a complete assessment as to the patentability of the presently claimed subject matter. For the sake of completeness and procedural efficiency, and in preparation to the oral proceedings, the following comments are made, which should be taken into account by the applicant.**

Clarity - Art. 84 EPC

- 10 As mentioned previously, all essential technical features should be present in the claims, which shall be clear as such, and be supported by the technical contents of the description (Art. 84 EPC). This does not appear to be the case for claims 1-3 and 7-10.
- 11 Further medical use claims 8-9 are is not acceptable under Article 84 EPC. Some of the therapeutic applications are either functionally or not clearly defined or defined by a mechanism of action ("improving the blood flow, improving the immunomodulatory properties in addition to being antibacterial, antifungal, anti-inflammatory and analgesic" - "post-operative situations"). This does not allow any practical application in the form of a defined, real treatment of a pathological condition (disease) (C-II, 4.22 and C-IV, 4.8).

Novelty and Inventive step - Arts. 54 and 56 EPC

- 12 All presently available relevant prior art documents, including those filed with the third party observations have been considered, with due regard to the corresponding arguments provided by the applicant and the third party observations.
- 13 At present, no complete assessment as to the novelty and inventive step can be made. It is however noted that none of the available documents appears to explicitly disclose "a topical wound healing formulation comprising a) 4 to 7 % of an aqueous extract of the barks of *Azadirachta indica*, b) an oil-herbs mix consisting of a mixture of castor, mustard, coconut and black sesame oils in equal ratios, along with extracts of the twelve following herbs 0.5 to 4 % of the

roots of Berberis aristata, stems of Glycyrrhiza glabra, stems, leaves and flowers of Jasminum officinale, rizomas of Picrorhiza kurrooa, seeds or leaves of Pongamia pinnata, stems of Rubia cordifolia, rhizomes of Saussurea lappa, fruits of Terminalia chebula, of the fruits of Capsicum, flowers of Stellata wild, 6 to 9% of the roots of Curcuma longa and fruits or leaves of Trichosanthes dioica, c) mixed with adjuncts, such as thickening agents, preservatives, coloring agents, decolorizing agents, fragrances and opacifiers.

- 14 Regarding the issue of inventive step, it is noted that none of the presently available prior art documents appears to suggest the specific combination of herbs in the specific concentrations mentioned above. Nevertheless, since all components of the combination are known individually to have a therapeutic effect in wound healing, their combination is considered to merely amount to a juxtaposition of well established active ingredients.
- 14.1 The applicant has provided data relating to the product AMPUCARE, which shows that this product exhibits a series of activities which render it valuable in the treatment of wounds. AMPUCARE is described on pages 17 and 19 of the applicant's submissions, but no reference is made to the ranges or the exact formulation of AMPUCARE. The applicant is hereby invited to indicate the exact composition of AMPUCARE, so that it can be compared to the composition of claim 1, and its relevance assessed.
- 14.2 On table 2 of the applicant's submissions (page 52), it is acknowledged that the ingredients of AMPUCARE are known to have antimicrobial, anti-inflammatory, antioxidant and wound healing activities. Although the therapeutic effectiveness of AMPUCARE is not disputed (it has been extensively demonstrated), nothing synergistic, surprising or miraculous can be recognised in the results provided. Besides, it is not apparent from the information available that the claimed composition and AMPUCARE are indeed the same.
- 14.3 It is submitted that the wound healing formulation of claim 1, as it stands, represent a mere juxtaposition of well known ingredients used for the healing of wounds and is still considered to lack inventive step in view of the presently available prior art documents. This also applies to claims 7, 8, 9, 10.
- 15 The applicant can file new claims /data / arguments which take account of the above comments, in preparation to the oral proceedings.

Care should be taken during revision not to add subject-matter which extends beyond the content of the application as originally filed (Art. 123 (2) EPC).

In order to facilitate the examination of the conformity of the amended application with the requirements of Art. 123 (2) EPC, **the applicant is requested to clearly identify the amendments carried out**, no matter whether they concern amendments by addition, replacement or deletion, **and to indicate precisely the passages of the application as filed on which these amendments, notably new combinations of features, are based (see also Guidelines E-II 1)**. If the applicant regards it as appropriate, these indications could also be submitted in handwritten form on a copy of the relevant parts of the application as filed.

If the basis for the submitted amendments is not apparent, no conclusion on their conformity with Art. 123 (2) EPC can be drawn and no examination of the claims filed will be carried out.